

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000092-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Nicholas Falu

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CASE INFORMATION

<u>Judge Assigned:</u> Bryant-Powell, Crystal	<u>Date Filed:</u> 01/05/2024	<u>Initiation Date:</u> 01/05/2024
<u>OTN:</u> U 291315-3	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0020320-2023
<u>Initial Issuing Authority:</u> The Honorable David H. Conroy	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Duffy, Michael P.	
<u>Complaint/Citation No.:</u> 2326044423-0020320	<u>Incident Number:</u> 2326044423	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0020320-2023	
District Control Number	2326044423	
Originating Document Number	2326044423-0020320	

STATUS INFORMATION

<u>Case Status:</u> Closed	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 11/12/2023
	09/09/2025	Sentenced/Penalty Imposed	
	06/17/2025	Awaiting PSI	
	06/17/2025	Awaiting Sentencing	
	06/17/2025	Awaiting Sentencing	
	01/14/2025	Awaiting Trial Readiness Conference	
	10/23/2024	Awaiting Trial Readiness Conference	
	09/09/2024	Awaiting Trial Readiness Conference	
	08/12/2024	Awaiting Trial	
	04/04/2024	Awaiting Trial Readiness Conference	
	01/18/2024	Awaiting Scheduling Conference	
	01/05/2024	Awaiting Filing of Information	

Complaint Date: 11/12/2023

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/18/2024	11:00 am	1104	Trial Commissioner Gerald Winterstein	Scheduled
Scheduling Conference	02/12/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Scheduling Conference	02/20/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Scheduling Conference	03/18/2024	9:00 am	507	Judge Barbara A. McDermott	Scheduled
Scheduling Conference	04/04/2024	9:00 am	801	Judge Monica Gibbs	Scheduled
Bail Hearing	08/06/2024	9:00 am	801	Judge Monica Gibbs	Continued
Bail Hearing	08/09/2024	9:00 am	801	Judge Monica Gibbs	Continued
Bail Hearing	08/12/2024	9:00 am	801	Judge Monica Gibbs	Scheduled
Trial Readiness Conference	09/09/2024	9:00 am	801	Judge Monica Gibbs	Continued
Jury Trial	09/17/2024	9:00 am	801	Judge Monica Gibbs	Continued
Trial Readiness Conference	01/06/2025	9:00 am	801	Judge Monica Gibbs	Moved
Trial Readiness Conference	01/06/2025	9:00 am	801	Judge Crystal Bryant-Powell	Scheduled
Jury Trial	01/14/2025	9:00 am	801	Judge Crystal Bryant-Powell	Cancelled
Jury Trial	01/14/2025	9:00 am	801	Judge Monica Gibbs	Moved
Trial Readiness Conference	05/27/2025	9:00 am	801	Judge Crystal Bryant-Powell	Scheduled
Jury Trial	06/03/2025	9:00 am	801	Judge Crystal Bryant-Powell	Continued
Jury Trial	06/06/2025	9:00 am	801	Judge Crystal Bryant-Powell	Continued
Jury Trial	06/17/2025	9:00 am	801	Judge Crystal Bryant-Powell	Scheduled
Sentencing	09/09/2025	9:00 am	801	Judge Crystal Bryant-Powell	Scheduled

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
12/10/2025	State Correctional Institution	SCI Phoenix		Yes

DEFENDANT INFORMATION

Date Of Birth: 06/04/1989 City/State/Zip: Philadelphia, PA 19148

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CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Probation Officer	Gamble, Russell
Probation Officer	Ford, Ronnie
Defendant	Falu, Nicholas

BAIL INFORMATION

Falu, Nicholas

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	01/05/2024	Monetary	Common Pleas	10.00%	\$1,500,000.00
Revoke	08/12/2024	Monetary	Common Pleas	10.00%	\$1,500,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
2	2	F1	18 § 2702 §§ A1	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	10/10/2023	U 291315-3
3	4	F1	18 § 6105 §§ A1	Possession Of Firearm Prohibited	10/10/2023	U 291315-3

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/04/2024	Not Final
2 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	F1 18 § 2702 §§ A1
3 / Possession Of Firearm Prohibited	Held for Court	F1 18 § 6105 §§ A1

Proceed to Court

Defendant Was Not Present

Information Filed	01/10/2024	Not Final
2 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	F1 18 § 2702 §§ A1
3 / Possession Of Firearm Prohibited	Proceed to Court	F1 18 § 6105 §§ A1

Guilty Plea - Non-Negotiated

Jury Trial	06/17/2025	Final Disposition
2 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Guilty Plea - Non-Negotiated	F1 18 § 2702 §§ A1
Bryant-Powell, Crystal	09/09/2025	
Confinement	Min of 4.00 Years	09/09/2025
	Max of 8.00 Years	
	4 years - 8 years	

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Disposition Date

Final Disposition

Sequence/Description

Offense Disposition

Grade Section

Sentencing Judge

Sentence Date

Credit For Time Served

Sentence/Diversion Program Type

Incarceration/Diversionary Period

Start Date

Sentence Conditions

Credit to be calculated by the Phila. Prison System

Sentencing: 4 to 8 years in a State Correctional Institution with credit to be given for time served, followed by (7) years reporting probation.

Probation

Max of 7.00 Years

09/09/2025

7 years

APPD Rules General Supervision (Add on all County Jail, Parole and Probation Penalties)

* You must NOT possess firearms (including replica guns) or any other deadly weapons, possess, use, sell or distribute controlled substances of any kind.

* You are not permitted to leave Philadelphia without approval of your Probation/Parole Officer (Additional travel requirements apply to Megan's Law)

* You must report to your Probation/Parole Officer as directed and permit your Officer to visit you at your home or place of employment.

* Seek and maintain employment and obey all criminal laws and city ordinances.

* Notify your Officer within 72 hours of any new arrest, change of address or change in employment.

* You may be ordered to pay supervision fees, undergo a personal search and/or property search, attend a Life Skills Training Course and submit to a DNA sample if convicted of certain offenses.

3 / Possession Of Firearm Prohibited

Guilty Plea - Non-Negotiated

F1

18 § 6105 §§ A1

Bryant-Powell, Crystal

09/09/2025

Confinement

Min of 4.00 Years

09/09/2025

Max of 8.00 Years

4 years - 8 years

Probation

Max of 7.00 Years

09/09/2025

7 years

LINKED SENTENCES:

Link 1

CP-51-CR-0000092-2024 - Seq. No. 2 (18 § 2702 §§ A1) - Probation is Consecutive to

CP-51-CR-0000092-2024 - Seq. No. 2 (18 § 2702 §§ A1) - Confinement

Link 2

CP-51-CR-0000092-2024 - Seq. No. 2 (18 § 2702 §§ A1) - Probation is Concurrent with

CP-51-CR-0000092-2024 - Seq. No. 3 (18 § 6105 §§ A1) - Probation

Link 3

CP-51-CR-0000092-2024 - Seq. No. 2 (18 § 2702 §§ A1) - Confinement is Concurrent with

CP-51-CR-0000092-2024 - Seq. No. 3 (18 § 6105 §§ A1) - Confinement

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COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Supreme Court No:

Phone Number(s):
215-686-8000 (Phone)

Address:
3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Defender Association of
Philadelphia
Public Defender

Supreme Court No:

Rep. Status: Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/05/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/05/2024		Conroy, David H.
Bail Set - Falu, Nicholas			
1	01/10/2024		Krasner, Larry
Information Filed			
2	01/18/2024		Winterstein, Gerald
Defendant to Retain Counsel			
4	02/12/2024		McDermott, Barbara A.
Status Listing			
5	02/12/2024		McDermott, Barbara A.
Short Certificate Court Appointments 02/12/2024 Hand Delivered			
1	02/13/2024		McDermott, Barbara A.
Order Granting Motion to Withdraw Counsel			
2	02/13/2024		McDermott, Barbara A.
Order to Comply			
1	02/14/2024		Defender Association of Philadelphia
Motion for Discovery			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
4	02/20/2024		McDermott, Barbara A.
Defense Request For Continuance Newly Retained or Appointed			
3	03/18/2024		McDermott, Barbara A.
Defense Request For Continuance For Status of Trial			
1	04/04/2024		Gibbs, Monica
Scheduling Conference Held			
3	07/30/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	07/30/2024		Defender Association of Philadelphia
Motion for Release Pursuant to Rule 600			
1	07/31/2024		Philadelphia County District Attorney's Office
Motion to Revoke Bail			
1	08/06/2024		Gibbs, Monica
Order Granting Motion for Continuance			
1	08/09/2024		Gibbs, Monica
Court Request For Continuance Court is on Trial			
1	08/12/2024		Gibbs, Monica
Order Granting Motion to Revoke/Release and Forfeit Bail - Falu, Nicholas			
2	08/12/2024		Court of Common Pleas - Philadelphia County Gibbs, Monica
Commitment Philadelphia County Sheriff's Office 08/12/2024 Philadelphia Department of Prisons 08/12/2024			
3	08/12/2024		Gibbs, Monica
Trial Date to Remain			

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4	08/12/2024		Gibbs, Monica
Order Granting Motion to Revoke Bail			
5	08/12/2024		Gibbs, Monica
Order Granting Motion for Release Pursuant to Rule 600			
1	09/09/2024		Gibbs, Monica
Defense Advance Request For Continuance			
3	10/23/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	10/23/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/14/2025		Bryant-Powell, Crystal
Order Granting Motion for Continuance			
2	01/14/2025		Bryant-Powell, Crystal
Order Granting Motion for Continuance			
5	01/14/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	03/26/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/27/2025		Bryant-Powell, Crystal
Order Granting Motion for Continuance			
4	06/03/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	06/03/2025		Bryant-Powell, Crystal
Defense Request For Continuance For Possible Plea			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
4	06/06/2025		Bryant-Powell, Crystal
Defense Request For Continuance For Possible Plea			
1	06/17/2025		Bryant-Powell, Crystal
Guilty Plea - Non-Negotiated			
2	06/17/2025		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			
5	06/17/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/09/2025		Bryant-Powell, Crystal
Order - Sentence/Penalty Imposed			
3	09/09/2025		Court of Common Pleas - Philadelphia County
Penalty Assessed			
4	09/09/2025		Court of Common Pleas - Philadelphia County
Court Commitment State or County Correctional Institution			
1	11/14/2025		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			

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CASE FINANCIAL INFORMATION

Last Payment Date: 05/01/2026

Total of Last Payment: -\$29.30

Falu, Nicholas Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
ATJ	\$6.00	(\$6.00)	\$0.00	\$0.00	\$0.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
CQS Fee Felony (Philadelphia)	\$100.00	(\$41.34)	\$0.00	\$0.00	\$58.66
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1988)	\$60.00	(\$60.00)	\$0.00	\$0.00	\$0.00
Criminal Lab Fee (Philadelphia)	\$135.00	(\$55.79)	\$0.00	\$0.00	\$79.21
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	(\$21.25)	\$0.00	\$0.00	\$0.00
Judicial Computer Project	\$8.00	(\$8.00)	\$0.00	\$0.00	\$0.00
OAG - JCP	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$1,006.94	(\$197.38)	\$0.00	\$0.00	\$809.56
Grand Totals:	\$1,006.94	(\$197.38)	\$0.00	\$0.00	\$809.56

** - Indicates assessment is subrogated